
Brundall Primary School Visit Report**Audit Date: 24/11/20****Report:** Remote consultation**DPE:** Stuart Lee**School member:** Rick Stuart-Sheppard (HT) and Kim Yates (admin)

1. Consultation details

The meeting was attended by Rick and Kim. The purpose of the remote session was to gain a refocus for data protection and to update the school as to policy and documentation updates and to signpost the school to the best practice areas and updates.

The school does not have a governor assigned for GDPR, although GDPR forms part of the headteacher's report used at full governor meetings. The school now uses CPOMS and has now migrated to cloud based system; the school have recently moved from a Google platform and Nsix emails to Microsoft and now use Office365. Building work is currently being completed; the school have assessed risks; the school were signposted to the site move/ data migration best practice area that can be used as needed.

Detailed below are main discussions from the session and follow up actions:

2. Audit walk

As it was not possible to complete an audit walk it was suggested the school could complete an after-school walk and compare any findings with the previous report findings. In addition, the school can also use the quick reference sheet which demonstrates best practice that can be followed: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guide>

3. Initial document and compliance actions discussed and to complete:

- **Privacy Notice** – school signposted to and to update with the latest COVID-19 guidance
- **GDPR Policy** – school signposted to and to update with the latest COVID-19 guidance
- **Data Breach Procedure** – discussed disseminating again to ensure all staff understood what a data breach was and how to report this. Also discussed data breach online training (5 – 10 minute) that it would be beneficial for staff to complete
- **SAR procedure** – school to ensure key staff understand how to respond to a SAR and are familiar with the procedure

Also demonstrated the initial compliance actions best practice area including checklists that can be used for visits and with governors to demonstrate compliance: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance>

3.1. Freedom of Information and Publication Scheme

The school has a publication scheme but needs to revisit and update this. As the ICO and DfE guidance differ regarding what documents should be published either, via the school website or paper copies, DPE have amalgamated the information and produced a model publication scheme. **The template for DPEs model publication scheme can be obtained from:** <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/freedom-of-information> **Please note: this is currently being updated – SL to send Kim latest version once updated.**

3.2. Staff training

GDPR training should be completed and documented. School to continue with rolling out training. Demonstrated the additional training options available. The school can now identify specific people for specific training modules i.e. clear desk and password security, for example.

The school can use staff meetings/briefings to raise staff awareness and to bring data protection back in to focus.

3.3. Governance check

As there were a number of requests from schools for additional governor resources, DPE has now added a governor best practice area to the DPE website. This includes a model terms of reference and other useful documentation. School has the option of using this to support governors and compliance.

3.4. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. DPE Record of Processing (RoP) manager will also include data retention and can be used in addition to the IRMS retention schedule. Reports to show retention periods will be able to be produced from the RoP Manager.

4. Technical measures

With more staff working remotely there is never a better time than now to check technical security measures. If not already, DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources>Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire> (not discussed in detail during the session)

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? How do you manage equipment that is taken off site and what is stored on this equipment? Do staff use their own devices when working remotely, if so, has best practice been communicated and have you adopted the DPE work away from school policy/guidance:

<https://kb.dataprotection.education/index.php/best-practice-library/best-practice/working-out-of-school>

5. Record of Processing (RoP) tool and data mapping

DPE will shortly complete a global clone with approximately 100 of the initial ROPs. Rather than each school completing individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and has started to form part of the basis for future remote sessions and visits. The global clone is scheduled to be completed at the start of December. Until then SL to copy some test RoPs for Kim to test and check against:

- Finance x 2
- HR x 2
- Management of the school x 2
- Pupil management x 2

5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPEs methodology is to complete the risk assessment within the RoP. As the RoP manager is rolled out more guidance and support on how to complete this and take ownership will be provided.

DPE follow up: It was not possible to add Rick as a manger to the system. SL to follow up (actioned).